



**FEDERAL PUBLIC SERVICE COMMISSION
COMPETITIVE EXAMINATION - 2017
FOR RECRUITMENT TO POSTS IN BS-17
UNDER THE FEDERAL GOVERNMENT
MUSLIM LAW & JURISPRUDENCE**

Roll Number

TIME ALLOWED: THREE HOURS	PART-I (MCQS)	MAXIMUM MARKS = 20
PART-I(MCQS): MAXIMUM 30 MINUTES	PART-II	MAXIMUM MARKS = 80
NOTE: (i) Part-II is to be attempted on the separate Answer Book.		
(ii) Attempt ONLY FOUR questions from PART-II. ALL questions carry EQUAL marks.		
(iii) All the parts (if any) of each Question must be attempted at one place instead of at different places.		
(iv) Candidate must write Q. No. in the Answer Book in accordance with Q. No. in the Q.Paper.		
(v) No Page/Space be left blank between the answers. All the blank pages of Answer Book must be crossed.		
(vi) Extra attempt of any question or any part of the attempted question will not be considered.		

PART-II

- Q. No. 2.** Give your peer analysis about the approaches of Al-Ghazālī and Al-Shātibī on the doctrine of maqāṣid al-Sharī‘ah. Explore the primary and secondary purposes of this doctrine and discuss whether maqāṣid al-Sharī‘ah are definite in number as determined by the earlier jurists or they may be increased. **(20)**
- Q. No. 3.** Muslim jurists classified offences on the basis of right. Why was there need of this classification? What important consequences flow from it and what will be the result if this classification is changed? **(20)**
- Q. No. 4.** Define ‘Aqd’ according to Muslim jurists. Which are the circumstances that affect the legal capacity of the parties to execute a contract under Islamic Sharī‘ah? **(20)**
- Q. No. 5.** Discuss critically the admissibility of inserting stipulations in a marriage contract by the parties. Your answer should be based on the debates of classical Muslim jurists and modern scholars. Your own opinion is also required. **(20)**
- Q. No. 6.** Imām Shāfi‘ī studied deeply the principles of Ḥanafī school of law. He disagreed with some views of Ḥanafī jurists and established his own independent school. What were his differences with Ḥanafīs and what did he contribute in modification of Islamic law and jurisprudence? **(20)**
- Q. No. 7.** The four Sunni canonical schools hold Ijmā‘ to be a valid source of law. But it is said that “there is no workable machinery for the selection of qualified jurists to take part in Ijmā‘ and for establishing their deliberations in an authoritative form”. Discuss and give arguments for and against this opinion. **(20)**
- Q. No. 8.** Write notes on the following topics: **(5 marks each) (20)**
- (A) Analysis of the terminology Uṣūl al-fiqh
(B) Status of mutawatir tradition
(C) Ṭalāq raj‘ī and its rules
(D) Section 4 of Muslim Family Law Ordinance 1961
